

TENTATIVE RULING FOR MAY 20, 2026

Department R12 - Judge Kory Mathewson

Andres Cerrillo v. Alec Anthony Rosales - CIVRS2505389

Motion(s): (1) Motion to Compel Further Responses to Requests for Production, Set One and Request for Sanctions
(2) Motion to Compel Further Responses to Requests for Admission, Set One and Request for Sanctions
(3) Motion to Compel Further Responses to Special Interrogatories, Set One and Request for Sanctions
(4) Motion to Compel Further Responses to Form Interrogatories, Set One and Request for Sanctions.

Movant(s): Plaintiff Andres Cerrillo

Respondent(s): Defendant Alec Anthony Rosales

RULING: Motions to compel further responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Production, Set One, and Requests for Admissions, Set One are MOOT. Sanctions are DENIED.

Plaintiff - to provide Order(s) and give Notice.

Plaintiff admits on Reply he has received substantive responses to the discovery. However, Plaintiff asks the Court to award sanctions against Defendant and his counsel for requiring Plaintiff to file motions to obtain the requested discovery. Therefore, Plaintiff's motions are moot; the only remaining issue is sanctions.

Sanctions

Sanctions to either party are not justified under the circumstances as each side should have done better to resolve these issues, and are therefore denied.

It was reasonable for Defendant's newly retained counsel to seek an extension to respond to Plaintiff's discovery so Defendant could provide substantive responses. Presumably, Defendant's responses would include information regarding Defendant's insurance coverage. Plaintiff acted unreasonably by refusing Defendant's request and by placing conditions on his agreement to grant the extension. Plaintiff ignored Defendant's attempts to engage further in discussion, prior to Defendant serving objections, where the parties could have agreed upon a date for Defendant to serve substantive responses.

For Defendant's part, Defendant should have responded to Plaintiff's meet and confer letter. Upon receipt of the letter, Defendant should have engaged in a dialogue with Plaintiff to reach agreement on when Defendant would provide further responses.

Therefore, the court denies each party's request for sanctions as not justified under the circumstances.

Dated: May 20, 2026

Judge Kory Mathewson